

there are several trustees, it is conceived that *all the trustees* must "act together," except in cases in which, independently of the section, a majority of the trustees are by law capable of binding the minority (*e*). The object of the section was not to enable some of the trustees to act without the concurrence of their co-trustees.

[*592] * It will be observed that the powers of this section are only exercisable by a sole acting trustee in cases where a sole trustee is by the instrument, if any, creating the trust "authorised to execute the trusts and powers thereof," but by the 38th section, as to trusts created by instruments coming into operation after the 31st December, 1881, any trust or power vested in two or more trustees jointly, in the absence of a contrary intention in the instrument creating the trust or power, may be exercised or performed by the survivor for the time being, and it seems to follow that in the case of trusts falling within this section the powers of sect. 37 may be exercised by a sole surviving trustee.

This section has largely extended the powers of executors and trustees, and it would seem that in future the only question will be whether the executors or trustees have acted in good faith in relation to any of the matters authorised by the section.

Discretion of executors.—Independently of the section, executors have a fair discretion whether they will press a debtor for payment, and will not be held liable for wilful neglect or default if they have exercised their discretion honestly and fairly in giving time to a debtor although loss may result from the delay (*a*).]

45. **Settlement with one residuary legatee.**—Executors and trustees of a will when they have discharged the funeral and testamentary expenses, debts and legacies, may come to a final account with one of the residuary legatees separately, and if such residuary legatee be paid only what is his fair share at the time, he will not be made to account to the

[(*e*) As to a majority binding a minority in charity trusts, see *ante*, p. 259; and see *post*, p. 597.]

[(*a*) *Re Owens*, 47 L. T. N. S. 61.]